

CHAPTER 29

An Act to amend section two of the Rural Water Supplies and Sewerage Act, 1944. [22nd June, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsection (1) of section two of the Rural Water Supplies and Sewerage Act, 1944 (which provides that where under section one of that Act the Minister of Housing and Local Government undertakes to make a contribution towards expenses incurred in relation to a rural locality in England or Wales by a local authority other than a county council, the council of the county within which the area of the authority to whom the undertaking is given falls, or, where that area falls within more than one county, the councils of each of the counties, shall undertake to make towards those expenses such contributions as may be agreed between the council and the authority)—

Contributions
by county
or county
borough
councils.
7 & 8 Geo. 6.
c. 26.

(a) for the words from “the county within which” to “each of the counties” there shall be substituted the words “any county within which the whole or any part of the locality in relation to which the undertaking is given falls”; and

(b) for the words “the council and the authority” there shall be substituted the words “the council of that county and the authority to whom the Minister's undertaking is given”.

(2) Where any expenses with respect to which an undertaking under the said section one is or might be given are incurred or proposed to be incurred in relation to a rural locality falling wholly or partly within a county borough by an authority other than the council of that county borough, the said section two shall have effect as if that county borough were a county.

(3) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this section in the sums payable out of moneys so provided by way of rate-deficiency grant or Exchequer equalisation grant under the enactments relating to local government in England and Wales or in Scotland.

2.—(1) This Act may be cited as the Rural Water Supplies and Sewerage Act, 1961. Citation
and extent.

(2) This Act and the Rural Water Supplies and Sewerage Acts, 1944 to 1955, may be cited together as the Rural Water Supplies and Sewerage Acts, 1944 to 1961.

(3) This Act shall not extend to Northern Ireland.